

Conflict and Consensus: The United States Constitution

The Nationalist School

John Fiske, The Critical Period of American History 1783-1789 (1893)

Thus after four months of anxious toil, through the whole of a scorching Philadelphia summer, after earnest but some times bitter discussion, in which more than once the meeting had seemed on the point of breaking up, a colossal work had at last been accomplished, the results of which were powerfully to affect the whole future career of the human race. In spite of the high-wrought intensity of feeling which had been now and then displayed, grave decorum had ruled the proceedings; and now, though few were really satisfied, the approach to acquiescent unanimity was remarkable. When all was over, it is said that many of the members seemed awestruck. Washington sat with head bowed in solemn meditation.

The Progressive School

Charles A. Beard An Economic Interpretation of the Constitution (1913)

The movement for the Constitution of the United States was originated and carried through principally by four groups of personality interests which had been adversely affected under the Articles of Confederation: money, public securities, manufactures, and trade and shipping. The first steps toward the formation of the Constitution were taken by a small and active group of men immediately interested through their personal possessions in the outcome of their labors...the Constitution was not created for "the whole people" as the jurists have said; neither was it created for "the states" as Southern nullifiers long contended; but it was the work of a consolidated group whose interests knew no state boundaries and were truly national in their scope.

The Revisionist School

Henry S. Commager, "The Constitution: was it an economic document", American Heritage (1958)

Was the Constitution designed to place private property beyond the reach of majorities? If so, the framers did a very bad job. They failed to write into it the most elementary safeguards for property. They failed to write into it limitations on the tax power, or prohibitions against the abuse of the money power. They failed to provide for rule by those whom Adams was later to call the wise and the rich and the well-born. What they did succeed in doing was to create a system of checks and balances and adjustments and accommodations that would effectively prevent the suppression of most minorities by majorities. They took advantage of the complexity, the diversity, the pluralism, of American society and economy to encourage a balance of interests. They worked out sound and lasting political solutions to the problems of class, interest, section, race, religion, party.

Not a government cunningly contrived to protect the interests of property, but one capable of extending to its citizens the blessings of liberty and happiness — was that not, after all, what the framers created?